

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
MARTIN GOLDS

Plaintiff,

-against-

CITY OF NEW YORK, P.O. ARGELIS
RODRIGUEZ, P.O. ANDREW HO,
P.O. MIKHAIL GONCHAROV, P.O.
MUHAMMAD UDDIN, P.O. NIK ALEX
and JOHN DOES #1-3 (the names John Does being
fictitious as their true names are presently unknown),

Defendants.
-----X

15-cv-3943 (RJD)(RLM)

AMENDED COMPLAINT

JURY DEMAND

Plaintiff, by his attorney, Law Office of Philip Akakwam, P.C., complaining of the
defendants, City of New York, P.O. Argelis Rodriguez, P.O. Andrew Ho, P.O. Mikhail
Goncharov, P.O. Muhammad Uddin, P.O. Nik Alex and "John Does #1-3" (collectively
"defendants"), upon information and belief alleges as follows:

INTRODUCTION

1. This is an action at law to redress the deprivation under color of statute, ordinance,
regulation, custom, or usage of rights, privileges, and immunities secured to plaintiff by the
Fourth, and Fourteenth Amendments to the Constitution of the United States, and by Title 42
U.S.C. § 1983 [and § 1985], and arising under the laws and statutes of the City and State of New
York.

2. Plaintiff seeks compensation for: the false arrest, false imprisonment and use of
excessive force by defendants against plaintiff and otherwise, for the violation of his federally
guaranteed constitutional and civil rights. Plaintiff seeks whatever other relief is appropriate and

necessary in order to serve the interest of justice and assure that his remedy is full and complete.

JURISDICTION

3. The jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343[3] and [4] in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and under the Fourth and Fourteenth Amendments to the United States Constitution.

4. Jurisdiction is also invoked pursuant to 28 U.S.C. Section 1367, entitled Supplemental Pendent Party Jurisdiction. Plaintiff requests that the Court invoke pendent jurisdiction over any and all claims arising under the laws and Constitution of the State of New York.

5. Venue is proper in this district under 28 U.S.C. § 1391(b).

PARTIES

6. Plaintiff, a black male, is a resident of the City of New York, County of Kings and State of New York.

7. Defendant, City of New York (City) is a municipal entity existing under the laws and Constitution of the State of New York and was the public employer of the defendant police officers through its Police Department - New York City Police Department- and the actions of the police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

8. Defendants P.O. Argelis Rodriguez, P.O. Andrew Ho, P.O. Mikhail Goncharov, P.O. Muhammad Uddin, P.O. Nik Alex and "John Does #1-3" were police officers employed by defendant City of New York.

9. Plaintiff is suing the defendant officers in their individual and official capacities.

FACTS COMMON TO ALL CAUSES OF ACTION

10. On or about January 19, 2013, at approximately 9:30 p.m., plaintiff was arrested, detained and subjected to excessive force at or near 335 Sutter Avenue, Brooklyn by defendant officers without probable cause and without justification or reasonable suspicion.

11. On the date and time aforesaid, plaintiff was driving on Mother Gaston Blvd., Brooklyn and made a u-turn to get to a parking spot near the intersection of Mother Gaston Blvd. and Sutter Avenue.

12. After parking, plaintiff exited his vehicle and started walking towards 335 Sutter Avenue to see one Michael Manson.

13. While plaintiff was walking towards 335 Sutter Avenue, he was stopped by some police officers who asked for his drivers' license. Plaintiff gave them his license.

14. Then the officers asked for plaintiff's vehicle insurance and registration documents. Plaintiff advised them that the requested documents were inside his vehicle.

15. And plaintiff returned to his vehicle, followed by the officers, retrieved the insurance and registration documents and gave them to the officers.

16. After receiving plaintiff's vehicle information, the officers asked plaintiff to get out of his vehicle. Plaintiff asked them why they wanted him out of his vehicle.

17. Upon plaintiff asking why they wanted him out of his vehicle, the officers started banging on the windows of plaintiff's car. They broke the windows of the vehicle and also broke the back side door of the vehicle.

18. The officers dragged plaintiff out of his car and beat him up by striking, hitting and kicking him on various parts of his body thereby causing plaintiff to suffer injury to various parts

of his body.

19. Then, plaintiff was placed under arrest. He was searched and handcuffed. The cuffs were made so tight on plaintiff's hand that they were hurting him. He complained but was ignored by the officers.

20. After their assault on plaintiff, the officers took him to Woodhul hospital where he was treated for his injuries

21. From the hospital, plaintiff was transported to the Police Service Area (PSA) #2 located at 560 Sutter Avenue, Brooklyn, where he was processed and detained until the next day.

22. The officers searched and tore up plaintiff's car causing extensive damage to the vehicle. Plaintiff spent over two thousand dollars (\$2,000) to fix his vehicle.

23. Plaintiff was falsely charged with criminal possession of marijuana, resisting arrest and obstruction of governmental administration among other charges. The charges were subsequently dismissed pursuant to CPL Section 170.55.

24. On February 4, 2013, plaintiff was driving in the company of Ronald Dykes and Jimaar Harris when they were stopped by police officers at the south west corner of Marcus Garvey Blvd. and Decatur Street.

25. The officers conducted an intrusive search of plaintiff's person by putting their hands into his underwear but they found nothing illegal on him.

26. Notwithstanding that the officers found nothing illegal on plaintiff, they arrested and transported plaintiff to the 79th precinct where he was detained in a police cell. Plaintiff complained that the handcuffs were so tight and hurt his hands.

27. The officers impounded plaintiff's truck and took it to an impoundment facility. They

claimed that there were no proper documents to identify owner of the vehicle even though plaintiff had advised them that all the necessary documents were inside the vehicle. Plaintiff paid \$300 for release of his truck.

28. At the precinct, plaintiff was strip-searched but nothing illegal was found on him. Yet, he was charged with criminal possession of marihuana and unlawful possession of marihuana.

29. On or about March 12, 2014, all the criminal charges against plaintiff were dismissed.

30. Again, on or about April 9, 2013, at approximately 11.30 p.m., plaintiff was driving on Blake Avenue, Brooklyn when he was pulled over by some police officers at the intersection of Blake and Wyona Street with their guns drawn and pointed at plaintiff.

31. The officers claimed that another officer had walked up to plaintiff about two blocks down the street to demand plaintiff's vehicle papers and that plaintiff had pulled away from the officers and failed to provide his papers.

32. Plaintiff told the officers that he did not see any officer walk up to him two blocks away as claimed by the officers. Also, plaintiff told them that he has no reason to pull away from any officers because all his driving documents were in good order.

33. The officers demanded plaintiff's drivers license, vehicle registration and insurance and plaintiff provided with all. After checking the papers and seeing nothing wrong with them, they proceeded to search plaintiff and his vehicle.

34. Even though the officers found nothing illegal from their search, they still went ahead and arrested plaintiff. He was placed in handcuffs which were made so tight that plaintiff suffered bruises in his wrists.

35. Plaintiff was transported to the 75th precinct where he was detained for about 24

hours. At the precinct, the officers claimed to have found marihuana in plaintiff's vehicle. He was later charged with unlawful possession of marihuana, fleeing from an officer in a motor vehicle, among other charges. The charges were subsequently dismissed pursuant to CPL Section 170.55.

36. And on April 3, 2014, plaintiff was arrested at or near 1661 Pitkin Avenue, Brooklyn, across the street from his store for allegedly selling oil from his vehicle.

37. Plaintiff had gone from his store where he sells oil and other items to his vehicle parked across the street to get some containers of oil from the vehicle for a customer in the store. He had some boxes of the oil in the car and would usually go to the car to get them if he ran out of the ones in the store.

38. As plaintiff stooped in his van getting the container of oils, some police officers pounced on him and told him that they were arresting him for selling oil from a vehicle.

39. Plaintiff told the officers that he was not selling oil from the vehicle but was collecting the oil to take to his store across the street.

40. The officers grabbed plaintiff, choked him and pulled on his hair locks causing some of the locks to fall off. Then they punched and kicked plaintiff on various parts of the body.

41. As they were cuffing plaintiff, he pleaded with them to use two cuffs instead of one because he had an injured shoulder. The officers told plaintiff to shut the hell up and that they were going to use only one cuff.

42. They made the cuffs so tight on plaintiff that it exacerbated the pain in plaintiff's shoulder and caused injury to his wrists.

43. Plaintiff was placed in a police vehicle and transported to the 73rd precinct. While in

the vehicle en route to the precinct, plaintiff was again choked and beaten by the officers.

44. While he was being transported to the precinct, plaintiff told the officers that he was in serious pain and needed medical attention but the officers ignored his pleas. He complained of pain in his lungs, shoulder and wrists.

45. On getting to the precinct, plaintiff advised the officers that he was too sick to walk and needed immediate medical attention. The officers dragged him out of the vehicle and then dragged him along on the ground all the way to the holding cell and left him there in handcuffs.

46. From his cell, plaintiff continued to cry for help until about three hours later when he was taken to Brookdale hospital for treatment. He was given some pain shots at the hospital.

47. After plaintiff was discharged from the hospital, he was taken back to the precinct and detained in a cell until he was later taken to Central Booking where he was again kept in a holding cell.

48. Plaintiff was charged with resisting arrest and obstructing governmental administration, among other charges. He went to court more than eight times before all the criminal charges were dismissed.

49. That each and every officer who was present at the location of plaintiff's arrest and/or at the precinct knew that plaintiff did not commit any crime, and had a realistic opportunity to intervene to prevent the harm detailed above from occurring. Nonetheless, defendant officers did absolutely nothing to discourage and prevent the harm detailed above from occurring and failed to intervene.

50. Plaintiff suffered physical injuries, including but not limited to injury to the wrists, lungs and shoulder.

51. And plaintiff suffered and continues to suffer emotional distress, fear, humiliation, embarrassment, shock, loss of liberty, loss of income, psychological trauma, pain, and damage to reputation as a consequence of the defendants' unlawful conduct alleged herein.

52. Plaintiff suffered violations of his federally guaranteed constitutional and civil rights including rights guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

53. Defendant Officers acted together and in concert sanctioning and ratifying and otherwise condoning the wrongful actions being taken by each of the defendant Officers in a collective manner and fashion.

54. Plaintiff has no other adequate remedy at law but for this action.

**AND AS FOR A FIRST CAUSE OF ACTION:
42 U.S.C. § 1983 - FALSE ARREST AND IMPRISONMENT**

55. Plaintiff reiterates paragraphs 1 through 54 and incorporates such by reference herein.

56. By their conduct and under color of law, defendant officers deprived plaintiff of his constitutional right to be free from false arrest and false imprisonment.

57. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**AND AS FOR A SECOND CAUSE OF ACTION:
42 U.S.C. § 1983 - UNREASONABLE AND EXCESSIVE FORCE**

58. Plaintiff reiterates paragraphs 1 through 57 and incorporates such by reference herein.

59. By their conduct and under color of law, defendant officers deprived plaintiff of his constitutional right to be free from excessive and unreasonable force.

60. As a direct and proximate result of the misconduct detailed above, plaintiff sustained the damage herein before stated.

**AND AS FOR A THIRD CAUSE OF ACTION:
42 U.S.C. § 1983 - FAILURE TO INTERCEDE**

61. Plaintiff reiterates paragraphs 1 through 60 and incorporates such by reference herein.

62. The defendant officers and other John Doe police officers each had opportunities to intercede on behalf of plaintiff to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

63. As a direct and proximate result of the misconduct detailed above, Plaintiff sustained the damage herein before stated.

AND AS FOR A FOURTH CAUSE OF ACTION

(Monell/42 U.S.C. Section 1983: Claim Against Defendant City of New York)

64. Plaintiff reiterates paragraphs 1 through 63 and incorporates such by reference herein.

65. The foregoing violations of plaintiff's federal constitutional rights and resultant injuries were directly and proximately caused by conduct, chargeable to defendant City, amounting to deliberate indifference to the constitutional rights of persons, including plaintiff, who are investigated, arrested, or prosecuted for alleged criminal activities.

66. The defendant City, through its police department, the NYPD, has developed and maintained policies and customs exhibiting deliberate indifference to the constitutional rights of its citizens, which caused the violations of plaintiff's rights.

67. It was the policy and/or custom of the City to undertake inadequate and improper investigations of civilian complaints of police misconduct and to punish inadequately officers

involved in complaints which were substantiated.

68. Both Internal Affairs Bureau (IAB) and the Civilian Complaints Review Board (CCRB) have substantially failed in their responsibilities to investigate misconduct and to discipline transgressors. The IAB investigations of brutality rarely lead to any administrative trials and, in the rare instances that charges are sustained administratively, the punishment is minimal, lacking any deterrent effect.

69. The defendant City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. Acts of brutality have been tolerated by the defendant City.

70. Defendant City, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of wrongfully profiling, arresting, illegally stopping, frisking, searching, seizing, abusing, humiliating, degrading and/or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as plaintiff, who is black, on the pretext that they were involved in some illicit activities.

71. The aforesaid deliberate or *de facto* policies, procedures, regulations, practices and/or customs were implemented or tolerated by policymaking officials for defendant City including but not limited to, the New York City Police Commissioner, who knew or should have known that such policies, procedures, regulations, practices and/or customs concern issues that regularly arise in the investigation and prosecution of criminal cases.

72. Defendant City failed to provide proper training and/or failed to insure that the training provided was adequately understood in regard to the following tasks which police officers commonly perform:

- (a) The determination of probable cause to make an arrest;
- (b) The duty to take into account the totality of the circumstances in determining the existence of probable cause to make an arrest;
- (c) The circumstances under which investigative detentions may lawfully occur and the manner in which they may lawfully be executed;
- (d) The very limited circumstances under which a warrantless search may be carried out.

73. Defendant City, acting through the NYPD, had actual and/or de facto policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, interviewing of witnesses and informants, assessment of the credibility of witnesses and informants, reasonable search of individuals and/or their properties, the seizure, voucher and/or release of seized properties, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligation to effect an arrest only when there is probable cause for such arrest.

74. The policymaking officials at NYPD know or ought to have known that such issues that regularly arise in the investigation and prosecution of criminal cases either present police employees with difficult choices of the sort that instruction, training and/or supervision will make less difficult or that the need for further instruction, training, supervision and/or discipline was demonstrated by a history of police employees mishandling such situations and making the wrong choice.

75. The aforementioned policymaking officials knew that the wrong choice by police

officers concerning determination of probable cause will frequently cause the deprivation of the constitutional rights of criminal suspects or defendants and cause them constitutional injury.

76. Further, the existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct. For example, in *Floyd v. City of New York*, 813 F. Supp. 2d 417, 422 (S.D.N.Y. 2011), the Southern District of New York observed that the City of New York had been accused of racial profiling on multiple occasions and that it had settled at least one of the lawsuits brought against it concerning racial profiling. And in *Ligon v. City of New York*, 12 Civ. 2274, 2013 U.S. Dist. LEXIS 22383, at *9-*10 (S.D.N.Y. Feb. 14, 2013), the Court determined that the City of New York, acting through the NYPD, engages in illegal and unreasonable stop, frisk, search and seizure. *See also Davis v. City of New York*, 10 Civ. 0699, 2013 U.S. Dist. LEXIS 45601 (S.D.N.Y. March 28, 2013) (same).

77. Also, in *Bryant v. City of New York*, Index No. 22011/07 (Sup. Ct. County of Kings Feb. 18, 2011), a jury determined that officers of the NYPD are permitted, as a policy and/or practice, to fill their arrest quotas by making unlawful arrests.

78. As a result of inadequate training of police officers on the practical meaning of probable cause for arrest, officers frequently detain and/or arrest citizens based on their hunches, inklings, or mere suspicion and without reasonable or probable cause.

79. As part of its policies, customs and practices, Defendant City has failed to take proper corrective and punitive actions against overreaching police officers thus creating the impression that crime reduction is paramount and triumphs over constitutional rights in all circumstances.

80. Prior to and at the time of the incident alleged herein, the defendant City was aware of

the need for more or different training, rules, regulations, investigation and discipline relating to police officers engaged in racial profiling, and was deliberately indifferent to that need.

81. As a direct and proximate result of the City's policies and deliberate indifference, defendants violated plaintiff's constitutional rights causing plaintiff to suffer substantial damages.

AND AS FOR A FIFTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision Under State Law; Defendant City)

82. Plaintiff reiterates paragraphs 1 through 81 and incorporates such by reference herein.

83. By virtue of the foregoing, defendant City of New York is liable to plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, and discipline its agents, servants and/or employees employed by the NYPD with regard to their aforementioned duties.

84. As a direct and proximate result of the acts and omissions of the defendants described in this Complaint, plaintiff suffered a significant loss of his liberty and violation of his federal constitutional rights, was prevented from attending to his necessary affairs and suffered and continues to suffer significant emotional pain, distress, humiliation and embarrassment.

AND AS FOR A SIXTH CAUSE OF ACTION:
PENDENT CLAIM OF ASSAULT AND BATTERY

85. Plaintiff reiterates paragraphs 1 through 84 and incorporates such by reference herein.

86. By their conduct, as set forth above, defendant officers committed acts of battery against plaintiff which included beating, punching and kicking him about the face and body during his arrest. The use of force against plaintiff was willful, unwarranted, and excessive.

87. The defendant City is responsible for the excessive and unnecessary force used by the

defendant officers as set forth above because the misconduct occurred while they were acting in the scope of their employment, specifically in the course of arresting plaintiff, and while they were executing their responsibility to hold him safely in police custody at the 81st precinct.

88. Upon information and belief, defendant City had sufficiently specific knowledge or notice of defendant officers' propensity for acts complained of herein and that their acts could reasonably have been anticipated. However, defendant City failed to take any appropriate actions to assure plaintiff's safety and security and failed to protect and/or safeguard plaintiff's interests.

89. By reason of and as a consequence of the assault detailed above, plaintiff suffered severe and serious physical and mental injuries.

**AND AS FOR A SEVENTH CAUSE OF ACTION:
PENDENT CLAIMS OF FALSE ARREST AND FALSE IMPRISONMENT**

90. Plaintiff reiterates paragraphs 1 through 89 and incorporates such by reference herein.

91. Plaintiff was wrongfully, unlawfully and unjustifiably charged, arrested, detained and deprived of his liberty against his will, and was imprisoned by defendant officers and other unknown John Doe police officers.

92. The wrongful, unjustifiable, and unlawful arrest, detention and imprisonment of plaintiff was carried out without a warrant.

93. The arrest and imprisonment of plaintiff was without any justification or probable cause, was forcible and against his will, and without any fault or provocation on his part.

94. At all relevant times, the defendant officers and other John Doe police officers who were responsible for the false arrest and imprisonment of plaintiff were employees of the defendant City through the NYPD, and were acting for, upon and in furtherance of the business

of their employer and within the scope of their employment.

95. As a direct and proximate result of the false arrest and imprisonment of plaintiff as detailed above, plaintiff sustained the damage herein before stated.

**AND AS FOR AN EIGHT CAUSE OF ACTION:
PENDENT CLAIM FOR GROSS NEGLIGENCE**

96. Plaintiff reiterates paragraphs 1 through 95 and incorporates such by reference herein.

97. The conduct of the defendant officers in falsely arresting and beating plaintiff and in failing to intercede on his behalf was grossly negligent and intended to cause plaintiff to suffer severe injury and extreme mental and emotional distress.

98. At all relevant times, said defendant officers were employees of the defendant City through the NYPD, and were acting for, upon and in furtherance of the business of their employer and within the scope of their employment.

99. As a direct and proximate result of the false arrest and imprisonment of plaintiff as detailed above, plaintiff sustained the damage herein before stated.

WHEREFORE, Plaintiff demands judgment against the Defendants as follows:

- i. For compensatory damages in an amount to be determined at trial - against all defendants, jointly and severally;
- ii. For punitive damages against the individual defendants in an amount to be determined at trial;
- iii. For reasonable attorneys' fees, together with costs and disbursements of this action, pursuant to 42 U.S.C. § 1988 and to the inherent powers of this Court;
- iv. For pre-judgment interest as allowed by law; and

v. For such other and further relief as the court deems just and proper.

Dated: Brooklyn, New York
December 31, 2015

LAW OFFICE OF PHILIP AKAKWAM, P.C.

By: /s/
Philip Akakwam, Esq.
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15-cv-3943 (RJD)(RLM)

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Defendants.

AMENDED COMPLAINT

LAW OFFICES OF PHILIP AKAKWAM, P.C.

Attorneys for Plaintiff
Office and Post Office Address
303 Livingston Street, 2nd Floor
Brooklyn, N.Y. 11217
(718) 858-2488

TO:

Service of a copy of the within is hereby admitted.

Dated: